

26PR00050 Conservatorship of Christopher Allan Rocco

County: santa-barbara

Division: Conservatorship

Department: 4 SM-Cook

Hearing date: 2026-08-31

Motion: Conservatorship Compliance Hearing

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Tentative Ruling: Conservatorship of Christopher Allan Rocco

Case Number

26PR00050

Case Type

Conservatorship

Hearing Date / Time

Mon, 08/31/2026 - 20:30

Nature of Proceedings

Conservatorship Compliance Hearing

Tentative Ruling

Probate Notes:

Appearances required. The following documents have not been filed with the court pursuant to the Court's order to file the documents:

Notice of Conservatee's Rights (Form GC-341) (Prob. Code, § 1830(c).) Form GC-341 must be timely mailed to the conservatee and to the conservatee's relatives within the second degree (grandparents, parents, siblings, adult children, and adult grandchildren). No Proof of Service is on file.

Confidential Conservatorship Care Plan (Forms GC-355 and GC-356) (Prob. Code, § 2351.2, 2352.5.) Conservators must file Forms GC-355 and GC-356 showing specific details about where the conservatee lives or has been temporarily placed,

the level of care necessary to provide for the conservatee's needs, the medical condition and treatment of the conservatee, as well as any plan to return the conservatee to their primary place of residence from a temporary care placement. PLEASE NOTE: Form GC-355 completely changed as of January 1, 2025 due to the passing of SB280, and GC-356 was newly created as a result of that law. The GC-355 form you submit must be the form revised on January 1, 2025. Please also be aware that Form GC-356 must be submitted in all cases, unless a first-degree relative is appointed a limited conservator and must include confidential medical information in response to paragraph 4 of GC-355 (at 4a or 4b). No earlier iteration of form GC-355 is acceptable to fulfil this duty. No current Form GC-355 is on file.

Inventory & Appraisal (Form GC-040) (Prob. Code, § 2610). The conservator must file an inventory and appraisal of the estate, made as of the date of the appointment of the guardian or conservator.

Proof of Service – Notice of How to File Objection to I & A (Form GC-042) (Prob. Code, § 2610) A copy of the Inventory & Appraisal (Form GC-040), along with Notice of How to File Objection to I & A (Form GC-042), must be delivered to the conservatee's spouse or registered domestic partner, the conservatee's relatives in the first degree, and, if there are no such relatives, to the next closest relative, unless the court determines that the delivery will result in harm to the conservatee.

Proof of Recording Letters of Conservatorship (Prob. Code, § 2313). A conservator of the estate shall record a certified copy of the letters with the county recorder's office in each county in which the conservatee owns an interest in real property, including a security interest. The conservator shall record the letters as soon as practicable after they are issued, but no later than 90 days after the conservator is appointed.

PLEASE NOTE: Failure to submit the required documents listed in the previous Conservator Compliance Order is a breach of fiduciary duty as a conservator, and can result in removal as conservator and surcharge. (Prob. Code, § 2650(c).) If you are removed from office, a successor conservator will be appointed and will be entitled to collect fees. The death of the conservatee does not relieve a conservator of the duty to cure the deficiencies from the previous hearings.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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